

25STCV15618 25STCV15618

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Department: 506
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Case Number: 25STCV15618 Hearing Date: September 10, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

14TH & VELASCO LLC,

Plaintiff,

vs.

KEVIN S. BEMEL, et al.,

Defendants.

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CASE NO.: 25STCV15618

[TENTATIVE] ORDER GRANTING MOTION TO EXPUNGE
LIS PENDENS

Dept. 506

8:30 a.m.

September 10, 2026

On May 29, 2025, Plaintiff 14th
& Velasco LLC filed this action against Defendant Kevin S. Bemel, as Administrator
of the Estate of Michael J. Meraz.

On
June 15, 2026, Plaintiff filed three Notices of Lis Pendens, recorded on June 12,
2026.

On
August 10, 2026, Defendant filed a motion for order expunging the lis pendens due
to defective service.

When
a party asserts a real property claim, that party may record a notice of pendency
of action in the office of the county recorder.
(Code Civ. Proc., § 405.20.) Before
recording the notice, the claimant must mail a copy to all parties to whom the real
property claim is adverse and to all owners of record of the real property affected
by the real property claim. (Code Civ. Proc.,

§ 405.22.) Immediately after recording the notice, a copy of the notice shall be filed with the court. (Ibid.) If these requirements are not met and if a proof of service is not recorded with the notice of pendency of action, the notice is void and invalid. (Code Civ. Proc., § 405.23.) “[A] party alleging a lis pendens is ‘void and invalid’ (§ 405.23) for defective service may move for expungement on that basis.” (Rey Sanchez Investments v. Superior Court (2016) 244 Cal.App.4th 259, 263.)

It is undisputed that the lis pendens did not comply with the statutory service requirements for service on all owners of record of the real property. Plaintiff admits that service was made only on Kevin S. Bemel, Administrator, C/O Leonardo Drubach (Defendant’s counsel of record), at 6442 Coldwater Canyon Avenue, Suite 211, North Hollywood, California 91606. (Opposition at p. 3; Pollock Decl., Ex. E.)

Plaintiff argues that “[s]ubstantial compliance with section 405.22 may satisfy the statute where the method used makes equivalent notice highly probable and the intended recipient actually receives sufficient notice to protect its interests.” (Opposition at p. 3.)

“[S]ubstantial compliance with a service requirement occurs when three conditions are met. [Citation.] ‘First, there must have been some degree of compliance with the offended statutory requirements.’ [Citations.] Second, the circumstances of the attempted service must have made it highly probable that it would impart the same notice as strict compliance. [Citation.] Third, it must in fact have imparted such notice or at least provided sufficient notice to put the notified party on its defense.” (J&A Mash & Barrel, LLC v. Superior Court of Fresno County (2022) 74 Cal.App.5th 1, 29 (J&A).) In J&A, the notice was sent by certified mail to the correct address. (Id. at p. 30.) The mailing was addressed to an individual who had a sufficiently close relationship with the general partnership that owned the property. (Ibid.)

Here, however, Plaintiff and 3447 14th LLC own the property as tenants in common. (Bemel Decl. ¶ 3.) Kevin S. Bemel is not an owner, and Defendant’s counsel does not represent an owner. (See Motion at p. 6.) The Court finds that Plaintiff did not show some degree of compliance with the statutory requirements and thus the service was was not substantially compliant.

The
motion is GRANTED. The lis pendens filed
on June 15, 2026 (recorded on June 12, 2026) are expunged.

Plaintiff
is ordered to pay \$3,750.00 to Defendant within 30 days.

Moving
party to give notice.

Parties
who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov
indicating intention to submit. If all parties
in the case submit on the tentative ruling, no appearances before the Court are
required unless a companion hearing (for example, a Case Management Conference)
is also on calendar.

Dated this 10th day of September 2026

Hon. Thomas D. Long

Judge of the Superior
Court